A case of two halves

Sue Leschen and Rosalind Howarth outline their distinct perspectives of a murder case across two venues, as interpreters for court and counsel

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During a recent assignment on a murder case, Sue Leschen was booked 'off contract' (directly by the court and not by the Ministry of Justice's outsourcing agency) as the 'court interpreter' and Rosalind Howarth was booked by the defendant's solicitors. Sue's role was to interpret for the defendant during the court hearing – whether he was in the dock or in the witness box giving evidence. Rosalind's role was to interpret for him during his meetings with his barrister. As interpreters working on the same case we shared some of the same experiences, but our respective roles meant that we had different remits.

Shared experiences

This was a two-venue case: a crown court and a medium-secure hospital where the defendant was being held on remand, which was linked to the court via video. The defendant attended part of the trial in person and part by video link. From a practical point of view, having two venues in different towns made life difficult. On long-running jobs away from home, interpreters normally book a hotel to cut down on travel-induced fatigue, but that was impossible on this job, as we didn't know from one day to the next which venue we would be working in.

Crossed wires between the court and the hospital as to the relevant venue, and even start times, occurred regularly. We were not always kept updated when the venue changed, which meant some hasty last-minute travel plans. Hospital staff also needed some notice of the venue, so they could arrange transport to take the defendant to court. In these circumstances, it would have been a lot harder working with a previously unknown interpreting colleague. Fortunately, we already knew one another through our professional network and had a good working relationship, so we were able to liaise about any changes to the venue or timings.

Rosalind tended to be more au fait with arrangements as she was in daily contact with the defendant's barristers, while Sue was reliant on court booking staff, who weren't always aware of last-minute changes themselves. Due to an administrative issue, Rosalind only started on day two and we didn't find out we would be working together until the night before the first day in court.

A large group of the victim's family and friends attended court every day, so when we were physically present in court we would seek out unoccupied consultation rooms, rather than stay in the public waiting room. This was in order to maintain distance and neutrality. However, it wasn't always possible to find a private room, as they were often being used by barristers. It really highlights how little provision there is for interpreters (compared to lawyers) in court buildings.

Even though interpreters are as crucial to the criminal justice system as solicitors and barristers, we are not on a level playing field. One major issue is that we have nowhere to work or leave our bags, coats, laptops and other belongings. A separate waiting room for interpreters would have been really useful.

In many ways, being at the hospital was far easier. We were able to park there, so travelling was quicker and easier. We were treated very well by staff, who were friendly, helpful and patient when escorting us around the building. We were able to take phones and laptops into the conference room, although we were not permitted to use them in other parts of the building. The icing on the cake was the wonderful free refreshments that the hospital laid on during breaks and at lunch time.

Interpreting via video link at the hospital did, however, raise some challenges. In the conference room, the link and sound were generally very good, but as the room was located just above the delivery van entrance, we were occasionally affected by noise from outside. There was also some noise from the acute ward on the next floor. One day we were moved to a different room where the sound was extremely poor and we were unable to increase the volume. Sue struggled to interpret in this situation, so we moved back to the conference room the following day.

As interpreters, we often work on short assignments and are then able to draw a line under them and carry on with our lives. However, this trial lasted for more than two weeks and was all-consuming; we had little time for anything else. Sue missed the CIOL Conference while Rosalind struggled with childcare, particularly when the venue changed at short notice. It was difficult to keep up with our admin work, but we managed to check emails and make calls related to potential jobs during breaks. Requests for future work had to be carefully considered as it was uncertain how long the trial would last.

The traumatic stories and images that we were exposed to increased the feeling of fatigue at the end of each day. Along with the nursing staff, we woke very early each morning thinking about the case. We had flashbacks of crime-scene photos and videos. Pictures of a blood-spattered bed and video of the victim were particularly hard to deal with.

Sue Leschen, court interpreter

When the defendant was in the dock and not giving evidence, I had to make several requests to counsel and/or the judge and witnesses to speak up, slow down and/or use their microphone. When the defendant was in the witness box giving his evidence, I would stand next to him interpreting for long periods of time – sometimes more than 1.5 hours.

Occasionally I had to ask counsel to clarify their questions to ensure I had understood certain words and phrases, such as 'pants' ('underwear' or 'trousers'?), if the meaning wasn't clear from the context. Sometimes the defendant spoke very quietly, so I had to ask for repetition while trying not to interrupt the flow of his speech. Interestingly, the judge drew attention to "interpreter interruptions" in his notes for the jury and advised them to make "fair allowance" for this when assessing the defendant's evidence.

On three occasions, the judge presented me with (previously unseen) lengthy documents and asked me to carry out on-sight translations there and then. Without a doubt, two court interpreters should have been allocated to a long-running assignment like this, but although conference interpreters usually work in pairs, the MoJ does not finance this sort of luxury.

I sometimes felt that the court treated the defendant with more respect than me. For example, the judge would allow comfort breaks for him, with my fatigue apparently being only a secondary consideration! At the secure hospital, the experience was completely different as we were able to share our experiences and coping responses with the nursing staff as professional equals.

Given my legal background and 20 years of legal interpreting experience, the legal terminology didn't cause me any difficulties, but some of the physical and mental health terminology required research on my part. This included terms for certain body parts and medication brand names.

Having to interpret impact statements from the victim's family at the end of the trial, wherein they described how the murder has affected them, was harrowing. Both the victim and the defendant were very young, and I experienced conflicting emotions about their two ruined lives. Interpreting intense sessions for half or full days with only short breaks left me feeling 'brain dead' due to total cognitive and emotional overload. Overall this was an unforgettable experience that will probably continue to haunt me.

Rosalind Howarth, counsel interpreter

This was a new experience for me, as I had not worked on a trial of this length before. While for Sue it was intense and short term during the trial weeks, for me it was a longer assignment, as I started working with the defendant a couple of months before the trial. From mid-January 2022 I was assisting counsel at regular online meetings with the defendant, I attended a case management hearing at the end of January, and I visited the secure hospital with counsel in advance of the trial.

The online meetings were very intense and some lasted for two hours. They were in the evening, which was tiring, and some of the details were traumatic. They did, however, help with my work during the trial, as I already knew a lot of details about the case and had a good idea of what to expect. I was also used to the way the defendant expressed himself.

The hospital environment was unfamiliar to me at first, but the staff were extremely welcoming and accommodating. One issue was a lack of access to the trial documents, known as the 'trial bundle', which was not always available at the hospital. There were also a few issues with displaying documents, such as the police timeline and photographic evidence, on the screen.

As the counsel interpreter, my job was arguably easier than Sue's, as I didn't have to interpret for long stretches during the court sessions. However, there were some long days and I often had to stay later to interpret for defendant/counsel conferences, either in the cells or in the conference room at the hospital. In court, it was hard to avoid the victim's family and as the counsel interpreter I found this particularly difficult.

The trial was long, emotional and tiring, and the defendant struggled with this too, as he was trying to listen to both languages at the same time. Accounts were given by barristers, witnesses, the defendant, judge and victim's family. Often the information was difficult to hear and process, and it was hard to switch off at the end of the day. I felt quite empty and numb when the trial finished, but it was a fascinating experience and one that I will never forget.

Kidlit in Japan

When talk of payment can be a cultural no-no: Deborah Iwabuchi on the unique position of Japanese-to-English translators

I have been a practising Japanese-to-English translator for more than 30 years. The economic clout of Japan, the relatively small number of English speakers who learn Japanese, and the infamous inefficiency of English teaching in Japan have resulted in a perfect windfall, making my language set one of the most profitable in the world for translation. Unfortunately, translation of books, specifically children's books, makes up a very small percentage of what I do.

The Japanese do publish and read children's books in translation, and home-grown translators are well known. A popular TV series was made about the life of Hanako Muraoka, who translated *Anne of Green Gables*, and translator Yuko Matsuoka's name is displayed as prominently as JK Rowling's on Harry Potter books.

In the Anglosphere, however, translators of children's and young adult (YA) literature are not household names. The Japan branch of the Society of Children's Book Writers and Illustrators (SCBWI) does actively promote translation, and talented translators are celebrated by awards such as the Mildred L Batchelder Award. Considered the Oscar for translated children's books, it was won this year by *Temple Alley Summer*, Avery Fischer Udagawa's translation of the book by Sachiko Kashiwaba. But while we translators admire each other's successes, I often wonder who else notices. Translating kidlit from Japanese to English is a luxury. I don't know of anyone who can make a living from it, so we focus on commercial projects instead.

Demand for world children's and YA literature from within the 'Big Five' US publishers and their imprints is dismal. But Japanese children's book publishers regularly publish translations from other languages, and are eager to see domestic award-winning books published in English, even if they have to do it themselves. This Japan-based English-language market is where I have most of my experience. I have worked for Kodansha International (KI) and the Japanese Literature Publishing Project (JLPP), which both paid well. But in 2011, KI was closed, sending four of my translations into a black hole. JLPP lost much of its government funding and discontinued its extensive activities, which had been a real source of encouragement and income for translators and editors of several languages.

Poor working conditions and no pay

These days in Japan, most books come with a tight budget and no scope for negotiation. I have taken on jobs that turned into labours of love with minimal compensation. Once, my co-translator and I were charmed by the author of a successful middle-grade children's book, who was planning to publish the English version on Kindle. It did come out, with lovely new illustrations, but we received nothing for our work.

ON THE COVER
Temple Alley Summer *translated by Avery Fischer Udagawa (left); and (below)* 1945←2015 *and* Rudolf and Ippai Attena *translated by Deborah Iwabuchi*

While that was an extreme example, other projects have often been a mixed bag of conditions and expectations. About a decade ago, a major Japanese publisher commissioned translations of a large number of its books for release as ebooks. They chose the Sony Kobo format, which was never widely available and has since been discontinued. Most of us have never seen our translations published. Even worse, the majority of them disappeared when the project ended.

Part of the problem is the way contracts are traditionally approached. I've done translations with pre-work contracts, post-work contracts and no contract. I'm sure that part of this mishmash is cultural transition into the modern age. I was taught that, in Japan, if an amount of money is agreed on, it is good manners to take the person or entity at their word. I'm being trusted to do the job as agreed, and I trust them to pay.

Unfortunately, there are variants of this practice that involve no mention of payment or deadline until well after an agreement to do a job has been reached. On my side, I have an expectation that my craft will be respected and compensated. I have accepted many an exciting project, worked flat out to meet the looming deadline and only then wondered how much I would be paid. By the time I signed a contract, the book was published and the time to negotiate was long over, but the publisher needed my signature before they could pay me. Obviously, this can create uncertainty and risk for the translator. These days, I do my best to bring up such uncomfortable topics as payment in advance, so I can work with peace of mind.

When a Japanese publisher or author has little experience with English translation, they sometimes jump into a project only to be overwhelmed with the complexity and expense of looking for overseas publishers and negotiating translation rights through agents. Finding a good translator and having them 'take care of everything' can seem like the best course of action.

In my experience, the role of the translator in these cases is not well understood. First of all, even if people know me in Japan as a translator of Japanese bestsellers, this means nothing in English-speaking countries where the author and I are complete unknowns. Second, even though I am published, I have no leverage with English-language publishers. Third, a good translator cannot turn a book into a good translation free of editing assistance. I did convince the project team once that I couldn't do without this, and they hired the editor of my choice. The resulting book, *1945←2015: Reflections on stolen youth*, was beautifully polished, well designed and released in both print and ebook by the original Japanese publisher.

#NameTheTranslator

When a Japanese book is distributed in an English-speaking country one issue remains: crediting the translator. This should be standard practice according to model contracts from PEN America and the US Authors Guild, as well as the Translators Association of the UK Society of Authors. However, literature in translation is not well received in English-speaking countries and one way publishers deal with this is by not naming the translator. When I pick up a translated work, I play a game I call Find the Translator. Not on the cover? How about the title page? If not, it is usually on the copyright page – but not always.

This creates an Easily Assimilated Product,[1] but without the names of translators on books, how are readers going to be conscious of – and jump at chances to read – books that are known and loved in other countries and cultures? How are we translators going to be noticed and get more work opportunities? The story, however, is not entirely grim. As Western society becomes more conscious of the need for diversity, children's literature in translation is getting more attention, and more publishers are proactively adding translations to their lists. The criteria for the Batchelder Award have just been changed to require that publishers credit the translator.

The SCBWI Japan Translation Group blog showcases kidlit translated from Japanese to English. Another mine of information is Project World Kid Lit, which I have recently become involved in. JBBY, the Japan branch of the International Board on Books for Young People (IBBY), prints an annual English-language catalogue to recommend Japanese works to world publishers. These forums are an active family. Translators are in constant conversation, books are available for review, successes are celebrated and issues are tackled. We translators are used to staying in the background, but #NameTheTranslator is growing into a global movement.

Growing demand for diverse books

The pandemic has actually been a boon for children's literature. With children stuck at home and inside for so long, parents from a wide array of cultures are buying more books. As the demand for diverse kidlit grows, it gets more attention, which in turn opens the way for more books from around the world.

As for translators, we tend to work in isolation anyway. If anything, we have become more connected now that we can all use virtual platforms, meeting online with authors, illustrators and others in the kidlit world for discussions, lectures and events. SCBWI Japan events are regularly attended by people from all over the world. I sit at my desk, click the icon and step out into the world. We translators are devoted to our craft. We remain hopeful that the world will continue to open to Japanese kidlit – a world that we are ready and willing to provide, at a fair rate and with the proper credit.

Notes

1 Nel, P (2017) *Was the Cat in the Hat Black? The hidden racism of children's literature, and the need for diverse books*, OUP